



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
GAYLORD DISTRICT OFFICE



LIESL EICHLER CLARK
DIRECTOR

April 14, 2022

VIA EMAIL

Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Jeffrey Dietlin:

SUBJECT: National Pollutant Discharge Elimination System (NPDES)
Permit Number MI0020257 (Permit)
Industrial Pretreatment Program (IPP)
Designated Name: Cadillac WWTP

On April 5, 2022, the Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), received the City of Cadillac's proposed Maximum Allowable Headworks Loading (MAHL) study work plan from Fleis & VandenBrink Engineering on behalf of the City of Cadillac. The submission included a proposed sampling plan, a list of pollutants of concern (POC), a request to remove the existing local limits for the following pollutants: 1,2-Dichlorobenzene, Chloroform, Ethylbenzene, Phenols, and Toluene, and a proposal to conduct additional effluent sampling for the following existing local limits to determine if they can also be removed: Lindane, Polychlorinated Biphenyls (PCB), Total Xylene, and Styrene. WRD staff have reviewed the plan and have the following comments.

1. The plan includes a proposal to remove the existing approved local limits for 1,2-Dichlorobenzene, Chloroform, Ethylbenzene, Phenols, and Toluene. The plan states that effluent sampling completed in March 2021 and August 2021 were non-detect for these pollutants, and therefore the plan requested to remove the local limits for these parameters. While local limits may be removed from an existing IPP, the justification submitted is not sufficient to determine that the above-listed pollutants are no longer POCs. Low or non-detect results from the Wastewater Treatment Plant (WWTP) effluent may indicate that the existing local limits are effectively controlling introduction of these pollutants to the collection system. However, this does not indicate that there is no longer a reasonable potential for these pollutants to be discharged to the collection system, to pose WWTP worker health and safety hazards, or to cause pass-through or interference at the WWTP. To demonstrate that these pollutants are not POCs, and therefore may be considered for removal from the local limits, a more detailed justification is required. This may include a demonstration that Publicly Owned Treatment Works treatment technologies have been installed which

adequately treat the pollutant so there is no longer potential for pass-through, interference, or adverse impact to the biosolids, the Industrial Users which introduced these pollutants to the Cadillac collection system are no longer discharging, have adopted alternative chemicals or processes, or have otherwise eliminated any reasonable potential for discharge of the pollutants. The request to remove the existing local limits for 1,2-Dichlorobenzene, Chloroform, Ethylbenzene, Phenols, and Toluene is denied. If the City of Cadillac can provide adequate justification for removal of these local limits, please submit this information for review by EGLE. Unless such a request is approved all existing local limits must be evaluated to determine if they are protective of the WWTP as required by Violation Notice VN-012230 (VN-012230), Item 5. Any local limits which are no longer protective of the WWTP must be revised accordingly.

2. The plan proposed to include two WWTP effluent samples for the pollutants Lindane, PCBs, Total Xylene, and Styrene, with the intent to use these data to determine if the pollutants could be removed from the City of Cadillac local limits. As explained under Item 1 above, WWTP effluent sampling results are not sufficient to determine if these pollutants are still POCs or if they may be removed from the City of Cadillac local limits. Any request for removal of local limits must include a justification explaining why the pollutant is no longer a POC. As required by VN-012230, Item 5, all local limits must be evaluated to determine if they are protective of the WWTP. Any local limits which are no longer protective of the WWTP must be revised following a technical review. It should also be noted that all locally limited pollutants must be monitored at least once annually in the WWTP influent and effluent. Failure to monitor all locally limited pollutants as required is a violation of the Cadillac WWTP NPDES Permit.
3. The plan states that sampling will consist of six 24-hour composite samples at each of the sampling locations. However, composite samples are not appropriate for all the listed POCs. The U.S. Environmental Protection Agency (EPA) guidance on Local Limits Development specifies that cyanide should not be collected as a composite sample. At least four grab samples must be collected in place of a composite sample for pollutants that cannot be collected as a composite. If it is determined after review of the local limits that the pollutants listed under Items 1 and 2 above should also be included in the MAHL sample collection, please note that EPA guidance also requires that samples for phenols and volatile organic compounds (VOC) also be collected as grab samples. Grab samples may however be composited prior to analysis as specified under 40 CFR Part 136, Guidelines Establishing Test Procedures For The Analysis Of Pollutants, and as stated in the analytical method as follows; cyanide and total phenols may be composited in the laboratory or in the field; VOC samples may be composited in the laboratory only.
4. The plan states that six samples will be collected at each of the sample locations, however, the plan does not make clear over what period these samples will be collected. If six samples are used to develop local limits, Part 23, Pretreatment,

of the Michigan Administrative Code requires that sufficient representative data are collected over a 4-week period, with at least one sampling event each weekday, Monday to Friday. The plan must be clarified to meet the above requirements.

5. The POCs listed in the plan include available cyanide. The current approved local limits for the City of Cadillac include total cyanide only. Please be advised that addition of an available cyanide local limit will not replace the existing total cyanide local limit and will not fulfill the requirement to review the existing local limits. Total cyanide must be included in the review of the existing local limits. It is also recommended that the local limit is retained for total cyanide because the Categorical Pretreatment Standards are for total cyanide. In the most recent IPP Annual Report, the City of Cadillac reported six Categorical Industrial Users subject to the categorical standards for 40 CFR Part 423, Steam Electric Power Generating, and 40 CFR Part 433, Metal Finishing. Both of these standards include total cyanide limits. As the City of Cadillac must apply the most stringent standard where both categorical and local limits are applicable, use of total cyanide as the local limit is easiest to implement as this would not require additional testing.

Please review the above comments and submit a revised MAHL study plan to me for review by May 6, 2022.

Should you require further information regarding the above comments, the required corrective actions noted in VN-012230, or if you would like to arrange a meeting to discuss it, please contact me at LoweC9@michigan.gov; 989-330-4639; or EGLE, WRD, Gaylord District Office, 2100 West M-32, Gaylord, Michigan 49735-9282.

Sincerely,

Claire Lowe
Gaylord District Office
Water Resources Division

cc: Doug Langworthy, Jr., City of Cadillac
Elaine J. Venema, P.E., Fleis & VandenBrink
Pam Willard, EGLE
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